IN THE TENTH JUDICIAL CIRCUIT
IN AND FOR HARDEE, HIGHLANDS
AND POLK COUNTIES, FLORIDA

ADMINISTRATIVE ORDER NO. 1-47.1

IN RE: COURTESY HARD COPY REQUIREMENTS

WHEREAS, the Florida Supreme Court has enacted electronic filing requirements that become mandatory in 2013; and

WHEREAS, electronically filed documents are already being accepted by the Polk County Clerk of the Circuit Court; and

WHEREAS, unexpected technological malfunctions with computers, servers, and internet/intranet connections occasionally occur and prevent the court from being able to view electronically filed documents during scheduled hearings or in chambers; and

WHEREAS, for the efficient administration of justice during occasions of unexpected technological malfunctions it is necessary for attorneys and pro se litigants to mail the assigned judge a courtesy hard copy of pleadings, motions, pre-trial order requirements, jury instructions, statements of the case, joint stipulations, notices of hearing and any other document required by the assigned judge; it is

ORDERED that:

1. When a matter is being called up for a hearing before a judge, attorneys and pro se litigants shall mail or hand deliver the assigned judge a courtesy hard copy of all pertinent pleadings, motions, pre-trial order requirements, jury instructions, statements of the case, joint stipulations, notices of hearing, and any other document required by the assigned judge for their consideration of the matter set for hearing. All courtesy hard copies of documents must be received **at least one day prior to any scheduled hearing** and must be marked "courtesy" or "judge's copy" or in a similar manner.

2. When a courtesy copy document includes confidential information, the attorney or pro se litigant must provide the assigned judge notice in compliance with Florida Rule of Judicial Administration 2.420, or any other applicable rule or statute, that confidential information is included in the document.

3. Courtesy copies may not be faxed to the assigned judge's office except when the motion or complaint is an emergency **and** the attorney or pro se litigant has received permission from the assigned judge's judicial assistant to fax such motion.

4. To avoid the appearance of impropriety, attorneys and pro se litigants shall not e-mail courtesy copies of any documents directly to the assigned judge unless specifically requested to do so by the assigned judge's office.

5. This administrative order supersedes Administrative Order No. 1-47.0, entered on April 2, 2013, and is effective upon entry.

DONE and ORDERED on this 6th day of June, 2017.

DONALD G. JACOBSEN, Chief Judge

Original:
Polk County Clerk of Courts

Copies:
All Judges
Polk County Clerk of Courts
Highlands County Clerk of Courts
Hardee County Clerk of Courts
Office of the State Attorney
Office of the Public Defender
Office of Criminal Conflict and Civil Regional Counsel, 2nd District Region
Electronic Bar Mailing